

TIMELINESS OF MOTION

Note: C.C.P., § 437(a) provides, in pertinent part: “The motion may be made at any time after 60 days have elapsed since the general appearance in the action or proceeding of each party against whom the motion is directed or at any earlier time after the general appearance that the court, with or without notice and upon good cause shown, may direct.” The purpose of the 60-day hold at the beginning of the case is to give the opposing party a reasonable opportunity to investigate and obtain discovery before having to deal with a motion that could terminate the litigation. (Weil & Brown, The Rutter Group Cal. Prac. Guide: Civil Procedure Before Trial (June 2024 Update), Summary Judgment and Summary Adjudication, § 10.56.) Nonetheless, motions filed prematurely may be deemed “made” at hearing. (C.C.P., § 1005.5; *Sadlier v. Sup. Ct.* (1986) 184 Cal.App.3d 1050, 1053-1054 [finding the trial court did not err in hearing the motion on the merits, after considering oral argument on the premature filing of the motion].)

Here, the motion was filed on 4/7/26, which is only 56 days after Defendant filed an answer on 2/10/26. Plaintiff failed to explain why it was filed prematurely or otherwise failed to show good cause.

1. Plaintiff may request oral argument and explain why they filed their motion prematurely.
2. If no oral argument is requested, the court will delay/continue the hearing and allow Defendant time to investigate and obtain discovery to oppose the motion. (*First State Ins. Co. v. Sup. Ct.* (2000) 79 Cal.App.324, 333. Septer 24, 2026 at 8:00 a.m., Dept. M205, Remote appearance is allowed.

5.

CASE #	CASE NAME	HEARING NAME
CVME2600690	TIME TRIAL INVESTMENTS, LLC VS UGALDE	PETITION FOR INJUNCTIVE RELIEF

Tentative Ruling: Unopposed.

The Court orders: I. enjoining Respondent(s) from violating Park Rules 8(G) Conduct, 11(D), 11(G) and 11(1) Pets, and that requires Respondent to comply with the following within fourteen (14) days from the date the Order is signed: Respondent(s) shall: a. Remove the dog from the Space or provide documentation for reasonable accommodation; b. Provide vaccination records for their unregistered pet; c. Provide a letter from a physician/therapist indicating the need for an emotional support dog; d. Cease leaving their dog outside unattended; e. Cease allowing their dog to excessively bark; f. Cease and desist from all annoying and nuisance conduct; g. Comply with the Rules and Regulations of the Park Rules; and h. Cease and desist violating the Park's Rules and Regulations, and the laws of the State of California.

The court will reserve on issues of attorneys's fees because the court does not have an attorney fee declaration to be able to properly address that issue.

Plaintiff to submit an order within 10 days for the court's signature